



FORMAL PROTECTED DISCLOSURE – PDA 26 OF 2000: Governance Update – AfroCentric Whistleblower Disclosure & High Court Filing HCGS951842 | Request for Emergency Assistance | 25 March 2026

1 message

Wilbur William Matthee <info@ethichawks.co.za>
To: queries@bonitas.co.za, legal@bonitas.co.za
Bcc: wilburmat@gmail.com

Fri, 20 Mar 2026 at 15:48

Dear Mr. Lee Callakoppen,

I write to you directly and respectfully in your capacity as Principal Officer of Bonitas Medical Scheme.

I am a former Bonitas member. I wrote to your organisation last year to express my sincere gratitude for the support Bonitas extended to me and my partner during a period of significant personal difficulty involving psychiatric treatment. That gratitude remains genuine and is part of why I am writing to you today – because Bonitas has been the one institution in this entire journey that treated me with dignity.

I am writing because I hold documented information directly relevant to Bonitas's current legal and regulatory position in relation to AfroCentric Investment Corporation Limited and its subsidiary Medscheme Holdings. I am also writing because I am in a state of acute humanitarian crisis and I need your help.

I am a Specialist Nurse with 16 years of clinical governance experience and an NQF Level 8 qualification in Health Services Management. I was employed recruited by Medscheme Holdings as a Specialist Case Manager and at the point of signing placed in a care coordinator role under an AfroCentric Investment Corporation Limited employment contract from May 2024 until my constructive dismissal on 12 December 2025.

I am the founder of EthicHawks, a forensic governance and compliance consultancy.

THE PROTECTED DISCLOSURES I MADE

During my employment I made multiple formal protected disclosures under the Protected Disclosures Act 26 of 2000, including:

- A patient safety disclosure in October 2025 regarding a systemic integration failure between Medscheme's Gexus and DMS clinical data platforms, generating automated false non-adherence letters to fully compliant chronic GEMS beneficiaries – including a 75-year-old member who had collected her chronic medication reliably every month;
- A formal Priority 1 Material Risk Report delivered to the AfroCentric Board of Directors on 9 December 2025, documenting B-BBEE fronting, payroll fraud, UIF non-compliance, and retaliation against a whistleblower;
- A formal protected disclosure filed with the Council for Medical Schemes on 23 December 2025 regarding the Gexus-DMS patient safety failure, requesting whistleblower protection. The CMS acknowledged receipt on 9 January 2026 but declined jurisdiction. That decline meant documented evidence of AfroCentric's internal governance failures did not enter the regulatory record at the time it was most relevant to the Bonitas proceedings.

I was constructively dismissed on 12 December 2025 as a direct consequence of occupational detriment following these disclosures. The day after my P1 Report reached the Board, the company filed a retaliatory CCMA affidavit attacking my professional credibility and dismissing my clinically diagnosed psychiatric condition as an afterthought and excuse. Not one director responded to the P1 Report.

3. THE CONNECTION TO BONITAS'S CURRENT POSITION

I am aware that AfroCentric and Medscheme filed an urgent High Court application in December 2025 seeking to halt Bonitas's RFP process, relying in part on whistleblower allegations. That application was removed from the roll in March 2026.

The following documented facts are directly relevant to Bonitas:

First — at the exact moment AfroCentric was invoking whistleblower protection as the basis for urgent commercial litigation against Bonitas, it was simultaneously retaliating against its own internal whistleblower, suppressing a patient safety disclosure affecting GEMS beneficiaries, and driving a formally protected nurse out of employment. This contradiction is documented and evidenced in an active High Court application.

Second — the CMS's decision to decline jurisdiction over my December 2025 protected disclosure meant that this documented evidence of AfroCentric's internal governance failures was not available to Bonitas or to the CMS at the time the Bonitas proceedings were most active. Had the CMS accepted jurisdiction which was within their jurisdiction, the regulatory record would have reflected that the entity invoking whistleblower protection in commercial litigation was simultaneously suppressing its own whistleblower.

Third — a parallel B-BBEE Commission investigation is currently running alongside the High Court application under B-BBEE Commission Case No. 5/02/2026. The B-BBEE fronting complaint — confirmed by a written admission from AfroCentric's own Senior HR Business Partner — is an active regulatory matter.

Fourth — the Gexus-DMS integration failure has not been remediated to my knowledge as of 19 March 2026. Chronic GEMS beneficiaries — may still be receiving false non-adherence correspondence today.

THE HIGH COURT APPLICATION

On 19 March 2026 I filed an urgent Section 162 Director Delinquency Application in the Western Cape High Court against five named directors and officers of AfroCentric Investment Corporation Limited.

Filing Reference: HCGS951842

Matter: Matthee v Fernandes & Others

Court: Western Cape High Court, Western Cape Division, Cape Town

Hearing date: 25 March 2026

The application documents the complete chain of protected disclosures, occupational detriment, retaliation, B-BBEE fronting, UIF fraud, payroll violations, and governance failure. The patient safety disclosure and the Gexus-DMS integration failure form part of the founding affidavit. The B-BBEE Commission investigation runs in parallel. And a criminal case with the SAPS CAS 705/3/2026.

This application is being brought by me as a self-represented litigant with no legal representation.

THE COMPLETE PICTURE OF INSTITUTIONAL FAILURE

I want to be transparent with you about what I have faced in bringing this matter to court.

I have been declined assistance or jurisdiction by every institution I approached:

- The CCMA issued Certificates of Non-Resolution but the proceedings were marked by documented irregularities
- The JSE issued a jurisdictional declination
- The B-BBEE Commission opened a case but the matter remains pending
- The SAHRC holds a comprehensive file but has not intervened
- The Council for Medical Schemes declined jurisdiction over the patient safety disclosure
- The HPCSA referred to SANC
- SANC failed to acknowledge the complaint within six days, prompting a Ministerial escalation
- The South African Pharmacy Council complaint was filed but remains unresolved
- The Department of Employment and Labour has not acted
- The Whistleblower House closed my file 50 minutes after receiving my rebuttal of their lawyer's opinion
- Every legal practitioner I approached either issued a flawed opinion or declined to assist

I have filed this High Court application entirely alone, as a self-represented litigant, with no food, no running water since January 2026, facing confirmed eviction at the end of March 2026, with my SANC registration lapsed, and with a clinical diagnosis of severe depression and PTSD.

You are the last institution I am approaching.

REQUEST FOR EMERGENCY ASSISTANCE

My court hearing is 25 March 2026 — five days from today.

I respectfully request Bonitas's emergency assistance with one practical matter:

The printing and binding of 6 court bundles, each approximately 110 pages with 14 tabbed dividers, and sheriff fees to enable me to appear before the Western Cape High Court on 25 March 2026.

I am not asking Bonitas to take any position in my matter, to associate itself with my application, or to provide legal representation. I am asking for the practical assistance of printing and binding six bundles so that a whistleblower — who disclosed a patient safety failure directly affecting beneficiaries, who was retaliated against for doing so, and who has been failed by every institution he approached — can stand before a court on 25 March and place the truth on the record.

The information I hold, and the High Court filing, may be of direct relevance to Bonitas's own legal and regulatory position in its ongoing matters with AfroCentric. I leave that assessment entirely to your legal team.

7. CONTACT

I am available immediately and can provide the complete founding affidavit, annexure bundle, and B-BBEE Commission case documentation upon request.

Wilbur William Matthee
Specialist Nurse | NQF Level 8 | Forensic Governance
Founder — EthicHawks
[15 Bellevue Street, Voorbrug, Cape Town, 7100](#)
info@ethichawks.co.za | wilburmat@gmail.com
Tel: 069 635 1435 / 063 378 8782

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